

Court No. - 32

Case :- WRIT - C No. - 43008 of 2019

Petitioner :- Rajendra

Respondent :- Executive Engineer And Another

Counsel for Petitioner :- Manoj Kumar

**Counsel for Respondent :- Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(a) Issue a writ, order or direction in the nature of mandamus directing the respondent authorities not to make any implementation in regard to electricity dues for the amount of Rs.6,64,480/- bearing KB No. 5,0601/001200 (O.T.S) relating to the petitioner (Annexure No. 6 to the writ petition).

(b) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no. 1 in regard to report of Khand Vikas Adhikari, Sultanganj, Mainpuri dated 13.09.2018 the proceeding of electricity dues or otherwise may be suspended forthwith in accordance with law.

(c) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent authorities to take appropriate decision over the online application of the petitioner dated 23.07.2019 forthwith within stipulated period.
"

Heard learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy

under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 2.1.2020

Arun